

**बिड दस्तावेज़ / Bid Document**

| बिड विवरण/Bid Details                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                    |
|-----------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| बिड बंद होने की तारीख/समय /Bid End Date/Time                                                                                | 10-07-2026 15:00:00                                                                                                                                                                                                                                                                                                                                                                                                                |
| बिड खुलने की तारीख/समय /Bid Opening Date/Time                                                                               | 10-07-2026 15:30:00                                                                                                                                                                                                                                                                                                                                                                                                                |
| बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)                                                   | 120 (Days)                                                                                                                                                                                                                                                                                                                                                                                                                         |
| मंत्रालय/राज्य का नाम/Ministry/State Name                                                                                   | Ministry Of Petroleum And Natural Gas                                                                                                                                                                                                                                                                                                                                                                                              |
| विभाग का नाम/Department Name                                                                                                | Indian Oil Corporation Limited                                                                                                                                                                                                                                                                                                                                                                                                     |
| संगठन का नाम/Organisation Name                                                                                              | Indian Oil Corporation Limited                                                                                                                                                                                                                                                                                                                                                                                                     |
| कार्यालय का नाम/Office Name                                                                                                 | locl- Gujarat Refinery                                                                                                                                                                                                                                                                                                                                                                                                             |
| शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal                                                       | HOD Email id :beherai@indianoil.in<br>Buyer Email id: kulkarnis1@indianoil.in                                                                                                                                                                                                                                                                                                                                                      |
| वस्तु श्रेणी /Item Category                                                                                                 | Custom Bid for Services - 9030C26C42- Operation and Monitoring of VAM- Vapour Absorption Machine based AC Plants, DX Type, Package AC Plants under LUPECH at Gujarat Refinery- Fixed Part- RFQ Item 10, 30, 40, 60 , Custom Bid for Services - 9030C26C42- Operation and Monitoring of VAM- Vapour Absorption Machine based AC Plants, DX Type, Package AC Plants under LUPECH at Gujarat Refinery- Variable Part- RFQ Item 20, 50 |
| समान श्रेणी/Similar Category                                                                                                | <ul style="list-style-type: none"> <li>• Support Services</li> <li>• Support Services</li> </ul>                                                                                                                                                                                                                                                                                                                                   |
| अनुबंध अवधि /Contract Period                                                                                                | 1 Year(s)                                                                                                                                                                                                                                                                                                                                                                                                                          |
| एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover        | No                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover | No                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| विक्रेता से मांगे गए दस्तावेज़/Document required from seller                                                                | Experience Criteria,Bidder Turnover,Certificate (Requested in ATC)<br>*In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer                                                                                                                                                                   |

| बिड विवरण/Bid Details                                                                                                                                                                                                    |                                                                                                                                                                                                                                     |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid? | No                                                                                                                                                                                                                                  |
| बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension                                                                                | 3                                                                                                                                                                                                                                   |
| दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended                                                                                                      | 7                                                                                                                                                                                                                                   |
| ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count                                                                                                                                            | 3                                                                                                                                                                                                                                   |
| बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled                                                                                                                                                                       | No                                                                                                                                                                                                                                  |
| बिड का प्रकार/Type of Bid                                                                                                                                                                                                | Two Packet Bid                                                                                                                                                                                                                      |
| तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation                                                                                        | 4 Days                                                                                                                                                                                                                              |
| न्यूनतम मूल्य/Floor Price                                                                                                                                                                                                | This bid has been created/published with floor price(minimum value) selected by the Buyer. Service Providers are advised to quote above the minimum floor value.                                                                    |
| अनुमानित निविदा मूल्य (सभी करों सहित) भारतीय रुपये में / Estimated Bid Value in INR (Inclusive of all taxes)                                                                                                             | 17216671.14                                                                                                                                                                                                                         |
| Payment Timelines                                                                                                                                                                                                        | Payments shall be made to the Seller within <b>45</b> days of issue of service delivery acceptance certificate (SDAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC) |
| मूल्यांकन पद्धति/Evaluation Method                                                                                                                                                                                       | Total value wise evaluation                                                                                                                                                                                                         |
| मध्यस्थता खंड/Arbitration Clause                                                                                                                                                                                         | No                                                                                                                                                                                                                                  |
| सुलह खंड/Mediation Clause                                                                                                                                                                                                | No                                                                                                                                                                                                                                  |

#### ईएमडी विवरण/EMD Detail

|                             |                     |
|-----------------------------|---------------------|
| एडवाइजरी बैंक/Advisory Bank | State Bank of India |
| ईएमडी राशि/EMD Amount       | 44000               |

#### ईपीबीजी विवरण /ePBG Detail

|                                                                    |                     |
|--------------------------------------------------------------------|---------------------|
| एडवाइजरी बैंक/Advisory Bank                                        | State Bank of India |
| ईपीबीजी प्रतिशत (%) / ePBG Percentage (%)                          | 2.50                |
| ईपीबीजी की आवश्यक अवधि (माह) / Duration of ePBG required (Months). | 26                  |

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज़ प्रस्तुत करने हैं। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(c). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

#### लाभार्थी /Beneficiary :

IOCL- Gujarat Refinery

IOCL- Gujarat Refinery, INDIAN OIL CORPORATION LIMITED, Ministry of Petroleum and Natural Gas

(IoCl - Gujarat Refinery)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

#### एमआईआई अनुपालन/MII Compliance

|                               |     |
|-------------------------------|-----|
| एमआईआई अनुपालन/MII Compliance | Yes |
|-------------------------------|-----|

#### एमएसई खरीद वरीयता/MSE Purchase Preference

|                                                                                                                                                                                                 |     |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|
| एमएसई खरीद वरीयता/MSE Purchase Preference                                                                                                                                                       | Yes |
| सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$ | 15  |

#### ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

**This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.**

**1. Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the

manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for % (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

2. If L-1 is not an MSE and MSE Service Provider (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band as defined in the relevant policy, then 100% order quantity will be awarded to such MSE bidder subject to acceptance of L1 bid price.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

#### अतिरिक्त योग्यता /आवश्यक डेटा/Additional Qualification/Data Required

**Instruction To Bidder:**[1782371743.pdf](#)

**Pre Qualification Criteria ( PQC ) etc if any required:**[1782371758.pdf](#)

**Scope of Work:**[1782371764.pdf](#)

**Payment Terms:**[1782371769.pdf](#)

**Quantifiable Specification / Standards of The Service/ BOQ:**[1782371775.pdf](#)

**GEM Availability Report ( GAR):**[1782371782.pdf](#)

**Undertaking of Competent Authority is mandatory to create Custom Bid for Services. Please download standard format document and upload:**[1782449465.pdf](#)

#### **Custom Bid For Services - 9030C26C42- Operation And Monitoring Of VAM- Vapour Absorption Machine Based AC Plants, DX Type, Package AC Plants Under LUPECH At Gujarat Refinery- Fixed Part- RFQ Item 10, 30, 40, 60 ( 1 )**

#### तकनीकी विशिष्टियाँ /Technical Specifications

| विवरण/ Specification                                                                         | मूल्य/ Values                                                                                                                                                                            |
|----------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>कोर / Core</b>                                                                            |                                                                                                                                                                                          |
| Description /Nomenclature of Service Proposed for procurement using custom bid functionality | 9030C26C42- Operation and Monitoring of VAM- Vapour Absorption Machine based AC Plants, DX Type, Package AC Plants under LUPECH at Gujarat Refinery- Fixed Part- RFQ Item 10, 30, 40, 60 |
| Regulatory/ Statutory Compliance of Service                                                  | YES                                                                                                                                                                                      |
| Compliance of Service to SOW, STC, SLA etc                                                   | YES                                                                                                                                                                                      |
| <b>एडऑन /Addon(s)</b>                                                                        |                                                                                                                                                                                          |

**क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer**

|                                                                            |     |
|----------------------------------------------------------------------------|-----|
| क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer | Yes |
|----------------------------------------------------------------------------|-----|

| प्राचल/Parameter | मूल्य/Values |
|------------------|--------------|
| कोर / Core       | 15161574.84  |

**अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents****प्रेषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity**

| क्र.सं./S.N o. | प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                    | Quantity                | अतिरिक्त आवश्यकता /Additional Requirement |
|----------------|----------------------------------------------------------|--------------------------------|-------------------------|-------------------------------------------|
| 1              | Sanket Ravindra Chaware                                  | 391320,P.O Jawaharnagar 391320 | Project / Lumpsum Based | N/A                                       |

**Custom Bid For Services - 9030C26C42- Operation And Monitoring Of VAM- Vapour Absorption Machine Based AC Plants, DX Type, Package AC Plants Under LUPECH At Gujarat Refinery- Variable Part- RFQ Item 20, 50 ( 1 )****तकनीकी विशिष्टियाँ /Technical Specifications**

| विवरण/ Specification                                                                         | मूल्य/ Values                                                                                                                                                                       |
|----------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| कोर / Core                                                                                   |                                                                                                                                                                                     |
| Description /Nomenclature of Service Proposed for procurement using custom bid functionality | 9030C26C42- Operation and Monitoring of VAM- Vapour Absorption Machine based AC Plants, DX Type, Package AC Plants under LUPECH at Gujarat Refinery- Variable Part- RFQ Item 20, 50 |
| Regulatory/ Statutory Compliance of Service                                                  | YES                                                                                                                                                                                 |
| Compliance of Service to SOW, STC, SLA etc                                                   | YES                                                                                                                                                                                 |
| एडऑन /Addon(s)                                                                               |                                                                                                                                                                                     |

**क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer**

|                                                                            |     |
|----------------------------------------------------------------------------|-----|
| क्रेता द्वारा निर्धारित न्यूनतम मूल्य/Minimum Floor Price defined by Buyer | Yes |
|----------------------------------------------------------------------------|-----|

| प्राचल/Parameter | मूल्य/Values |
|------------------|--------------|
| कोर / Core       | 527474.72    |

#### अतिरिक्त विशिष्टि दस्तावेज़ /Additional Specification Documents

#### परिषिती/रिपोर्टिंग अधिकारी /Consignees/Reporting Officer and Quantity

| क्र.सं./S.No. | परिषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer | पता/Address                    | Quantity                | अतिरिक्त आवश्यकता /Additional Requirement |
|---------------|---------------------------------------------------------|--------------------------------|-------------------------|-------------------------------------------|
| 1             | Sanket Ravindra Chaware                                 | 391320,P.O Jawaharnagar 391320 | Project / Lumpsum Based | N/A                                       |

#### क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

##### 1. Purchase Preference (Centre)

Preference to Make In India products (For bids less than 200 Crore):Preference shall be given to Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. The minimum local content to qualify as a Class 1 local supplier is denoted in the bid document 50%. If the bidder wants to avail the Purchase preference, the bidder must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which no purchase preference shall be granted. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020. Only Class-I and Class-II Local suppliers as per MII order dated 4.6.2020 will be eligible to bid. Non - Local suppliers as per MII order dated 04.06.2020 are not eligible to participate. In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

##### 2. Forms of EMD and PBG

Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

Indian Oil Corporation Limited  
Account No.  
10135305063  
IFSC Code  
SBIN0000568  
Bank Name  
State Bank of India  
Branch address  
IOCL - Gujarat Refinery

Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

##### 3. Forms of EMD and PBG

Successful Bidder can submit the Performance Security in the form of Payment online through RTGS / internet banking also (besides PBG which is allowed as per GeM GTC). On-line payment shall be in Beneficiary name

Indian Oil Corporation Limited

Account No.

10135305063

IFSC Code

SBIN0000568

Bank Name

State Bank of India

Branch address

IOCL - Gujarat Refinery

. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer in place of PBG within 15 days of award of contract.

#### 4. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

**Quotation Method: Fixed Part - Line Item 00010,00030,00040,00060 Variable Part - Line item 00020 & 00050 of SOR.**

- A. The Subject job comprises of fixed and variable component. Bidder cannot quote below the value of minimum floor price set in GeM portal against each component.
- B. The quoted rates shall not be less than the minimum wage fixed/notified by the Central/ State Government – where the service is performed and shall include all statutory obligations. Bids without any element of cost over and above such minimum wage (or below it) shall be treated as 'Nil' price quotation and would be Rejected.
- C. SOR of this job comprises of Fixed and Variable part as detailed below:

| SN | SOR           | Tender Schedule of Rates                 | GeM Bid Document | Min. Floor Price as set in GeM Portal                              |
|----|---------------|------------------------------------------|------------------|--------------------------------------------------------------------|
|    |               |                                          |                  | Bidders are not allowed to quote less than the minimum floor price |
| 1  | Fixed Part    | RFQ Item No. 00010, 00030, 00040 & 00060 | Item No. 1       | Rs. 1,51,61,574.84                                                 |
| 2  | Variable Part | RFQ Item No. 00020 & 00050               | Item No. 2       | Rs. 5,27,474.72                                                    |

- D. Bidders quoting anything above the minimum floor price on Fixed Part shall be considered as their offer on the Variable part and loaded accordingly over and above the amount quoted by the bidders in Variable Part of the tender.

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

**All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.**

**For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.**

**The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:**



- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

This Bid is governed by the [सामान्य नियम और शर्तें/General Terms and Conditions](#), conditions stipulated in Bid and [Service Level Agreement](#) specific to this Service as provided in the Marketplace. However in case if any condition specified in सामान्य नियम और शर्तें/General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement, then it will over ride the conditions in the General Terms and Conditions.

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---